IN THE NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
(Special Bench)

CA (CAA) No.26/ALD/2021
(Under Sections 230-232 of the Companies Act, 2013)

In the matter of
The Companies Act, 2013

And

In the matter of
Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016

And

In the matter of
Scheme of Amalgamation of Legend Financial Consultancy Private Limited (Transferor Company No.1) and SAB Computing Private Limited (Transferor Company No.2) with Ganga Bag Udyog Private Limited (Transferee Company) and their respective shareholders

And

In the matter of
Ganga Bag Udyog Private Limited, a company incorporated under the Companies Act, 1956 and being a Company within the meaning of the Companies Act, 2013, having Corporate Identification Number (CIN) .U17111UP1994PTC016711 and its registered office at 8th Floor, Block-B, Vinayak Plaza, Maldahiya Crossing, Varanasi - 221002 in the State of Uttar Pradesh.

… Petitioner Company No. 1/ Transferee Company

And

Legend Financial Consultancy Private Limited, a company incorporated under the Companies Act, 1956 and being a Company within the meaning of the Companies Act, 2013, having CIN: U51909UP2007PTC104120 and its registered office at 8th Floor, Block-B, Vinayak Plaza, Maldahiya Crossing, Varanasi -221002 in the State of Uttar Pradesh.

… Petitioner Company No. 2/ Transferor Company

And

—Sd—

SAB Computing Private Limited, a company incorporated under the Companies Act, 1956 and being a Company within the meaning of the Companies Act, 2013, having CIN: U51100UP2000PTC041779 and its registered office at 8th Floor, Block-B, Vinayak Plaza, Maldahiya Crossing, Varanasi -221002 in the State of Uttar Pradesh.

… Petitioner Company No. 3/ Transferor Company

Date of hearing: 12.01.2022

Date of Pronouncement: 24.01.2022

Coram (Special Bench):

Shri Rajasekhar V. K.	:	Member (Judicial)
Shri Balraj Joshi	:	Member (Technical)

Appearances (via videoconferencing):

For the Applicants	:	Shri Jnana Ranjan Dhal, Advocate Shri Rohit Kumar Keshri, PCS

ORDER

Per: Balraj Joshi., Member (Technical)

1. The instant application has been filed in the first stage of the proceedings under Section 230(1) read with Section 232(1) of the Companies Act, 2013 ("**Act**") for orders and directions with regard to dispensation of meeting of shareholders all applicant companies and dispensation of meeting of creditors all applicant companies in connection with the Scheme of Amalgamation of Legend Financial Consultancy Private Limited, being the Applicant No. 2 and SAB Computing Private Limited, being the Applicant No. 3 above named ("**Transferor Companies**") with Ganga Bag Udyog Private Limited, being the Applicant No. 1 above named ("**Transferee Company**") whereby and whereunder the Transferor Companies are proposed to be amalgamated with the Transferee Company from the Appointed Date, *i.e.*, 1st April, 2021 in the manner and on the terms and conditions stated in the said Scheme of Amalgamation ("**Scheme**").

2. It is submitted by Ld. counsel appearing for the Applicant Companies that the shares of the Applicant Companies are not listed on any Stock Exchange.

—Sd—

Further, the Applicants have the following classes of shareholders and creditors as on 10.09.2021:

(a) Applicant Company No.1: 11 Equity Shareholders and Nil Secured and 11 Unsecured Creditors;

(b) Applicant Company No. 2: 2 Equity Shareholders and Nil Secured Creditor and 2 Unsecured Creditors;

(c) Applicant Company No. 3: 5 Equity Shareholders and Nil Secured and 4 Unsecured Creditors.

3. It is submitted that all the Equity Shareholders of the Applicant No. 1, 2 and 3 have already given their consent to the Scheme by way of affidavits which are annexed to the application.

4. It is further submitted that unsecured creditors of the Applicant No. 1, 2 and 3 in value 100% have already given their consent to the Scheme by way of affidavits which are annexed to the application.

5. It is further submitted that secured creditors of the Applicant No. 1 in value 100 % have already given their consent to the Scheme by way of affidavits which are annexed to the application. It is further submitted that Applicant No. 2 and 3 have no secured creditor.

6. Directions are sought accordingly for dispensing with the requirement of convening the meetings of the Equity shareholders and unsecured creditors of the Applicants Company No. 1, 2 and 3 and secured creditors of Applicant No. 1 who have already given their consent to the Scheme; to consider the Scheme under Section 230(1) read with Section 232(1) of the Act.

7. Upon perusing the records and documents in the instant proceedings and considering the submissions made on behalf of the Applicant Companies, we allow the instant application and make the following orders:-

—Sd—

Meetings dispensed: Meetings of the Equity Shareholders, Unsecured Creditor of the Applicant No.1, 2 and 3 and secured creditors of Applicant No.1 are dispensed with under Section 230(1) read with Section 232(1) of the Act.

8. Notice under Section 230(5) of the Companies Act, 2013 along with all accompanying documents, including a copy of the aforesaid Scheme and statement under the provisions of the Companies Act, 2013 shall also be served on the (i) Central Government through the Regional Director (Northern Region), Ministry of Corporate Affairs; (ii) Registrar of Companies, Uttar Pradesh within whose jurisdiction the Applicant Companies are registered; (iii) Income- Tax Authorities within whose jurisdiction the Applicant Companies are assessed, clearly indicating the PAN of the company concerned; (iv) the Official Liquidator, High Court, Allahabad; by hand delivery or by registered / speed post or by email forthwith. The notice shall specify that representation, if any, should be filed before this Tribunal within 30 days from the date of receipt of the notice with a copy of such representation being simultaneously sent to the Advocate of the said Applicants. If no such representation is received by the Tribunal within such period, it shall be presumed that such authorities have no representation to make on the said Scheme of Arrangement. Such notice shall be sent pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8(2) of the Companies (Compromises, Arrangements and Amalgamations) Rules 2016 in Form No. CAA3 of the said Rules with necessary variations, incorporating the directions herein.

9. The Applicants to file an affidavit proving service of notices to the Statutory Authorities.

10. The connected company petition be filed within a period of four weeks, considering the present pandemic situation.

11. The application being Company Application (CAA) No. 26/ALD/2021 is disposed of accordingly.

—Sd—

12. Certified copies of this order, if applied for, be provided to the parties concerned upon completion of the usual formalities.

—Sd—

Rajasekhar V K
Digitally signed by Rajasekhar V K
Date: 2022.01.24 20:06:47 +05'30'

Balraj Joshi
Member (Technical)

Rajasekhar V.K.
Member (Judicial)

Swati Gupta, LRA